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By e-mail only:

Edward Snook
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Swindon Borough Council
Beckhampton Street
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Dear Mr. Snook,

S/COND/22/0031 Discharge of Condition 8 of S/OUT/13/1555: Strategic Design Code

Rowborough and South Marston Villages, Bus Operators' Consultation Response

1. Background and update

We write with regard to the current re-consultation on the matters referenced above. I apologise for the somewhat delayed response. However the conclusion we have drawn surrounding the matters raised in this case, and expressed at the end of this letter, have a broader significance and needed careful internal consideration.

Both of the Borough's main operators made a joint response in July raising significant concerns and questions regarding the delivery of public transport into this substantial scheme. This also included discussion of how the phasing of the development would affect the ability for services to penetrate the site and terminate.

We also made comments having regard to how far the public transport strategy for Rowborough and South Marston Villages would be likely to have reference to the wider public transport offer and routing across the whole New Eastern Villages (NEV) area. While the location of this element north of the Great Western Railway line and A420 creates significant severance from the much wider parts of the strategic allocation to the south, Rowborough is intended to function as a part of this wider whole.

This response is made on behalf of Stagecoach only, however. We would stress that no conclusion should be inferred as to the position of Swindon's Bus Company.

We have discovered that on 15th December 2022, the Supreme Court handed down its judgment regarding the matter of adoption of the primary highway connection at Great Stall across the boundary between Symmetry Park/Panattoni and Great Stall East.

This wider link running parallel to the A420 and a short distance to the south has always been intended to act as the major public transport spine, in the Master Plan strategy for NEV and a wider range of adopted

Supplementary Planning Documents that carry significant weight in development management terms. Among other things, the route would link the proposed Park and Ride at Acorn Bridge with the District Centre and then the town centre, via a direct uncongested route. This route would pass key trip generators including the Secondary School. A bus gate was to be introduced along it within Great Stall East, to ensure that it retained free flowing movement for sustainable modes. Where Rowborough is concerned, it has long been our view that this link would provide by far the most credible basis for the bus service routing, acting as a short extension of the service beyond the Park and Ride site.

It is possible that a connection across the crucial land control boundary can still subsequently be secured by negotiation. In the light of the judgment however, it is very hard to see how that could be achieved and who would fund the financial consideration that would be almost certain to be involved. It is evident that Swindon Borough Council is not in a position to fund this itself. The requirement in policy for an "Express Bus Service" running along the direct route between the town centre and Acorn Bridge through the heart of the development looks in all probability to have entirely fallen away.

This being the case, the strategy to serve Rowborough by bus is wholly dependent for the foreseeable future on the delivery of the whole primary street spine through the development. As we noted out in previous comments, this is unlikely to take place until about 2032. The route using this street within the site will only be able to draw revenue from the development itself – there is no other credible hinterland. The practical value of the Park and Ride site without a direct traffic–free link to the west is entirely impossible to imagine, certainly to intercept journeys heading towards Swindon, which was its main rationale.

Thus, the assumption regarding public transport services at Rowborough set out at Section 6.2 is likely to be unachievable.

"6.21 Bus routes through the site will serve the new development providing access to key places within and around the site to include:
• Swindon Town Centre and Railway Station; and
• Park & Ride facilities to be delivered as part of other development south of the A420."

Notwithstanding the long-held principles set out in the adopted Local Plan Core Strategy and the specific policies for NEV, which justified the allocation and were at the core of the transport mitigation strategy for the plan, there is no clearly identifiable scope to effect a higher mode share from bus from the project than is being realised from other recent urban extensions around Swindon. One effect is likely to be very high levels of car use and dependency by residents of the development. This can be expected to have consequential impacts on the immediate and wider highway network, further serving to undermine the delivery of bus services within Swindon Borough by exacerbating delay and unreliability caused by traffic congestion.

2. Primary Street Design Parameters

We will review the current proposals in line with our prior observations and recommendations. To the extent that the applicant has elected not to make adjustments, we must stress that this materially reduces the efficiency, safety and amenity of the primary street, certainly as far as buses are concerned.

- **National Model Design Code** (NMDC). The proposals have not been adjusted to account for the NMDC. In particular, the distances between kerbs and building lines remain as previously proposed. With regard to our comments regarding "Manual for Streets 3", we are aware that this has still not been promulgated by Government.

- **Street widths.** These remain at 6.75m. As previously notified without strict enforceable controls on on-street parking, buses will be unlikely to make sufficient progress. Please see note our additional comments later in this response.
- **Carriageway narrowings.** These remain at 6.4m.
- Passive traffic calming. Street trees are proposed which will assist in passive traffic calming through visual friction, but generally this remains on one side only. The very close proximity of buildings on the other side (e.g. see 5.51) will contribute to the same effect but at a price in terms of greatly reduced residential amenity owing to proximity to relatively large volumes of moving traffic.
- **Cycle provision**. This is where quite substantial changes have been made, in line with LTN 01/20. Segregated provision for cycling is now proposed. This will run along one side of the primary street as a 3m 2-directional track alongside a 2m footway, rather than as 2m stepped provision "with flow" as we recommended. While segregated cycle provision is welcome in itself, this arrangement has profound implications for the design and location of bus stops, on that side of the primary street that the cycling provision is made. In particular, to meet Equalities Act 2010 requirements demands that clear provision is made for crossing the cycle track between bus stops and the footway beyond the track, especially having regard for the sight impaired. LTN 01/20 makes clear that segregated cycle tracks are vehicular roads.
- **Frontage access.** We note at 6.30 that *"Some direct access off primary streets will be allowed to individual dwellings or group of" (sic).* No more clarity is offered. Achieving a consistently good balance requires a clear and robust approach at reserved matters stage but without any real steer from the Strategic Design Code it looks unlikely that in practice there will be much restriction of private frontage access. This follows the general practice across most developments, but it certainly does not lend itself to maximising the efficiency, relevance and convenience of public transport provision. However, the introduction of the segregated cycle track presents a further quite compelling reason why this needs to be revisited. Two-way cycle movements will conflict with the path of cars at each crossover. Within individual drives, these vehicles are likely to be reversing towards the street, while the track itself is relatively close to building lines, substantially restricting inter-visibility. This is another good reason why direct vehicular access along the primary street should be significantly rationalised, in a way that means that vehicles are always intersecting the cycle track in forward gear.
- **Building stand-offs.** We previously noted that 5m stand-offs were less than is a desirable minimum, to avoid noise and visual intrusion on adjoining properties from traffic on primary streets much os which is passing through. We note that at section 5 and section 6.25 Section B-B, the Village Primary Street cross-section indicates that habitable windows could be as little as 3m from the kerbline of the primary street. This will have profound consequences for residential amenity at all times of year but in particular when windows are open. There is no space to appropriately accommodate bus stops on sections of street where buildings are this close to the kerbline. With respect to this theme and the pervious, it is clear that tadpole Garden Village is not a precedent for the approach proposed by the applicant. At Tadpole Graden Village, dwellings are set back considerably further from the kerbline on both sides. Nor is off-carriageway unsegregated or segregated cycle provision made along the spine road.
- **On-carriageway parking**. Again, we note no very material change in this regard, over the previous submission. As indicated at 6.31, there is some elaboration on the matter. *"Occasional parallel visitor parking is allowed, either within the verge or within the carriageway subject to Swept Path and appropriate details."* For this to be achieved, is certain to require restriction of on-carriageway parking to ensure that it remains "occasional" as opposed to ubiquitous. The applicant provides no details as to how this might operate in practice including during a long build-out period prior to highway adoption. We nevertheless continue to welcome the implicit recognition that a more intentional approach to accommodating parking is necessary and justified on the primary street but we continue to regret that this is not carried through to much more clearly-stated and achievable design principles.

3. Bus stop locations

The comments made at section 4.2 of our July response remain apposite.

We note that in this submission, this remains a matter for future determination. We note that at 6.25, it is stated *"Bus stops will be designed to be at a maximum of 5 minutes walking distance from most homes. However, exact location of bus stops and alignment of bus routes will be agreed at the Reserved Matters stage as part of the detailed design of the primary streets."*

It is not clear the process that the consortium members intend to use to progress reserved matters submissions. Should the primary street be the subject of discrete REM planning application/s in advance of residential parcels adjacent, then this might create scope for the optimal siting of bus stops, having regard to the framework established in this Design Code, around which subsequent design efforts for residential frontages can then follow. While that would be one credible sequence to follow, we consider that its much more likely that sections of primary street will be sought for detailed consent concurrently with adjacent residential development as integral elements of wider reserved matters submissions. One reason for this conclusion is that a high density of driveway crossovers makes it in practice, very hard to design frontages without in essence having to revisit the design of the primary street itself. These issues are implicitly reflected in the language at 6.32.

As it is, the indicative positions are as previously proposed having virtually no regard to the way in which these should respond to the urban grain, except perhaps at the Local Centre.

At least one pair of stops is anticipated with the "rural" or "parkland" character areas (see 6.36 and associated section A-A). This involves extensive verges and swales. Such stops are likely to be unsurveilled by adjoining dwellings.

We would therefore point out that to meet appropriate standards of public safety, including the "reasonable adjustments" required of design under Equalities Act 2010, stops design must:

- Offer a paved boarding area alongside the kerb of no less than 4m. This is likely to require the bridging of swales in some locations. This ***might*** also require measures to avoid inadvertent falls into the swale at either end of the boarding area, depending on details used.
- That boarding area needs a kerb upstand of 120mm. We recommend no more than 180mm for specialised bus boarding kerbs, but standard half-batter kerbing is perfectly acceptable as buses can "kneel" to meet this height.
- Stops should be properly lit.
- Suitable safe carriageway crossing facilities should be provided, both to the street and the cycle track on the other side if necessary.

We made some quite comprehensive points on this matter, which have not been positively considered. We note that there is not even an attempt made to overlay the indicative bus stop positions on amps showing side streets or major pedestrian links, that would form a basis to clearly that stops have been optimally sited. Rather, the minimum number of stops is indicated that to a great extent is designed on little more than the quite crude application of abstract principle of "crows flight" distances. This is a very strong indication of the level of care and concern of the applicants' client team on this issue, despite the time and thought we applied to adding another layer of detail for consideration. All of these matters have a small but material bearing on the relative attractiveness of bus services.

4. Withdrawal of 2014 financial offer made by Stagecoach to the Consortium

6.2 The strategy will promote walking and cycling as the main modes to move within the site and connect to its surroundings, maximising opportunities for sustainable mobility options.

Stagecoach notes that public transport is not mentioned at this point. From this and the wider content of the submission, it appears the applicants are intentionally seeking to distance themselves from any need positively consider how public transport should be accommodated to maximise its role. Given the location of the site from key off-site destinations, it has to be questioned how far walking and cycling will in practice achieve a very substantial mode share for such journeys, especially when the experience of other major developments in Swindon is considered.

Irrespective, based on the situation today some 8 years after the proposals were first made, the assumptions on which this were based demonstrably no longer hold, even before the effects of COVID are considered.

Were it the case that we had a good level of confidence that the applicants were supportive of buses playing the fullest possible role, we might be ready to proceed on the basis historically agreed with the applicants. In the absence of this evidence, we do not see that a credible business case exists to serve the development at any stage in the foreseeable future.

Thus, from this point, notwithstanding our correspondence and financial proposals submitted to the applicants in 2014, **responsibility for the delivery of any bus service is one that should be assumed to lie with Swindon Borough Council.**

5. Conclusion

With this response, read alongside previous comments, Stagecoach has gone as far as it can to signal the basis on which bus service could provide the most relevant possible choice to residents of the Rowborough development.

However, it is not apparent that the proposals have evolved in any substantial manner to support the efficient and convenient provision of bus services to the development. What is more apparent is that the applicants' indifference to the role of public transport on the development seem to have hardened.

There are wider contextual challenges to provision of bus services throughout the wider NEV. These cannot be laid at the door of the applicants. However, the proposed approach simply compounds these problems.

We greatly regret we cannot be more positive. However, should the development be implemented on the basis of the revised submitted Design Code, at this writing it appears that the most likely long-term outcome is that the development will represent a suburban outlier where the vast majority of journeys off site are most likely to be made in private cars. Public transport is more likely than not, largely going to lie within the scope of taxi operations.

Yours sincerely

Nick Small

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